

Evergreen By Design

Terms of Services

Policy date: 8/28/2023

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Evergreen By Design is proud to serve you under these terms of services. These terms of service must be followed by any client signing up with Evergreen By Design for their website design and management needs.

Any reference to Evergreen By Design in this terms of services document also assumes that it represents the owner of Evergreen By Design.

Any reference to “you or your” assumes that this document refers to you as my client.

All pages within this document of the terms of services are part of this document as a whole and when you agree to the terms of services of this document you agree to all pages with the same policy date (m/d/y) and reference number (Ref#).

These terms of services may be subject to change in the future. You will be notified about any future changes by email before the changes are implemented.

Website service payment beyond the new terms of service will be your agreement to uphold the new terms of service.

Please feel free to contact me about any of these terms of service. (541) 378.5563

Website Design

- (A) Website design is a one-time payment that is due before the design of said website work can begin.
- (B) Website design time frames vary depending on website size, email automation setup, and tasks.
- (C) Evergreen By Design cannot be held liable for presumed income or revenue that might have come from said website during design, maintenance, or if your website temporarily goes down. This also includes cancelations and future revenue or income that your website might or would have accumulated.
- (D) All of Evergreen By Design's website designs are a copyright of Evergreen By Design and cannot be duplicated, transferred, or copied in any way. The exception to this is Logo designs which are 100% owned by you (The Client). See Logo Design-(a).
- (E) Websites Designed with Basic and Premium plans will have a "Website Powered by Evergreen By Design" at the bottom of their website signifying that these websites are property of Evergreen By Design and fall under the Website Design-(d) terms and conditions set by Evergreen By Design. Gold and Elite plans will not have any Evergreen By Design branding at the bottom but will have a copyright link hidden in the background to signify that this website is the property of Evergreen By Design.
- (F) Evergreen By Design provides content creation as part of your services. This includes Written, Images, Logos, and videos for design purposes. After content has been created you may make any changes that you want to said content. Evergreen By Design cannot be held liable or responsible for content posted to your website.

Refund Policy

- (A) Refunds are only given at Evergreen By Design's approval. No third party or client may force Evergreen By Design to issue a refund.
- (B) Refunds will not be given if the website goes down temporarily. I do make it a priority to get any website that has gone down back up ASAP!

- (C) Refunds will not be given if you decide to cancel your plan. See Canceling Policy-(b)
- (D) Refunds will not be given for no sales or lack of sales on your website.
- (E) Refunds will not be given for no or lack of subscribers for email marketing.

Payment Policy

- (A) Payment must be made in FULL before website design and services can begin. This included both monthly service and website design fees.
- (B) Monthly payments start on the date of signing up and continue on that numbered date for each month of the year. This payment continues until you (the client) have emailed me a written request to cancel. (See Canceling Plans-(e)
- (C) Non-payment of the monthly website service fee will result in your website being put into Maintenance mode. This Maintenance mode will start 3 days after payment has failed. You have 30 days from the time you missed your first payment before all services will be involuntarily canceled and your account closed. This will include shutting down hosting services, removal of databases, and terminating your professional email. Evergreen By Design is not responsible for any information lost because of the client's failure to pay the monthly website services fee.
- (D) An estimated 3% credit card fee will be applied to each payment.

Domain Policy

- (A) Upon signing up with Evergreen By Design you can get a TLD (top-level domain) of your choosing. The Domain you chose must not exceed \$15 per year in cost.
- (B) The DOMAIN IS 100% THE PROPERTY OF THE CLIENT and can be released for transfer to you at any time after services have ended with Evergreen By Design. The domain is yours to take with you even if you decide to cancel your plan or if your plan was involuntarily canceled due to non-payment. Evergreen By Design is not responsible for the said transfer of domains as this will be a transfer into your own registrar, but Evergreen By Design will send an email containing an "auth" transfer code and will unlock your domain for 30 days upon request by you.

- (C) Evergreen By Design is not responsible for transfer fees into your (the client's) registrar. Domains will be held for you up until renewal time (ending domain payment period for the year). If you have not transferred said domain or have made no contact about said domain at that point in time, I will release the domain back to the public registrar which can be purchased by anyone.
- (D) Evergreen By Design cannot be held liable in any way (monetary or legally) due to your domain being released back into the public. This includes failure on domain transfer payment, lack of knowledge of how to transfer said domain into your (the client's) registrar, or misappropriation with "auth code" release and domain unlock request (i.e., someone gets this information through your email and takes your domain).
- (E) You may purchase a domain on your own as well. Evergreen By Design will need access to this domain (aka your domain name registrar account) so I can set up your domain with hosting and other integrations. Evergreen By Design is strictly forbidden to share ANY domain account information with any other entity.
- (F) Evergreen By Design will not cover any payments to third-party domain registrars and you (The Client) are responsible for payment of said domain.

Canceling Plans

- (A) You can cancel your plan at any time after 30 days of signing up. There is no cancelation fee and upon canceling your domain can be transferred to a registrar of your choice. See domain policy-(B)
- (B) If you decide to cancel your plan then your website services will end at the start of the next payment period and your website will go offline at that time (unless you request your website to go offline sooner).
- (C) When you cancel your website service plan this cancels all services including hosting, email, and any other service managed by the plan you are on.
- (D) When you cancel your plan, you cannot get the files on your server. These files are part of your website design and hosting and are terminated with the hosting service. However, you can request a CVC file that contains all your subscribers or Shop purchases and subscriptions.

- (E) All cancelations need to come in a written email which is both of our verifications that your plan has been canceled. In this email, please include the date that you wish to terminate services and whether you want your website services terminated immediately or at the end of the pay cycle.

Website Maintenance and Updating

- (A) I will be updating your website every week to make sure all security patches will be implemented.
- (B) If your website by chance should break, I will fix it ASAP (generally within 24 hours).
- (C) If I am on vacation and your website breaks and I am unable to get to your website until after vacation Evergreen By Design cannot be held liable for any income lost during the outage of the website. I do however take into consideration the time that the website is down and may refund half if not the full month's service if the website is down for an extended period of time. This refund is still solely the decision of Evergreen By Design. See Vacation Time-(b)

Third-Party Software Protection

- (A) To expedite the process of designing and managing your website I use third-party software. While I have used this software for years, I do not control the coding behind said third-party software. Therefore, Evergreen By Design cannot be held liable if any third-party software breaks or if any software used on your website becomes exploited. See Website Breakage-(a)

Third-Party Platform Usage

- (A) Usage of other third-party platforms (accounts that you, the client, create), such as Google Analytics, Payment Gateways, Domain Registrar, etc. are strictly under your management, and Evergreen By Design in no way can be held liable for any misuse, mismanagement, or loss of monetary gain due to management of said third-party platforms. Evergreen By Design in no way holds ownership or is responsible for managing these third-party platforms.

Website Breakage

- (A) While it is one of the rarest things with my business it does happen from time to time that a website may break out of the blue. I can usually get a website back up and running within 24 hours of breakage.
- (B) Evergreen By Design cannot be held liable for any monetary loss due to website breaking. As part of these terms and services, you (the Client) agree that Evergreen By Design can use third-party software to expedite website design and functionality.

Website Loss of revenue

- (A) Evergreen By Design cannot be held liable for any monetary loss (whether presumed or proven) from your website. This includes ad revenue, product revenue, service revenue, affiliate marketing revenue, or third-party shop front revenue.

Owner Information on the website and scam warning

- (A) The amount of information about yourself that you display on your website is totally up to you (the client). Evergreen By Design cannot be held responsible for any scam or misuse of your information on your website.
- (B) Evergreen By Design will not provide any information on the website about the owner, including phone numbers, emails, addresses, or any other information that is directly related to you (The Client) without your expressed written permission (generally in an email) stating that you want this information on your website.

Vacation Time

- (A) One of the things about having one person who knows your website inside and out is that that person takes vacations from time to time. Hey, I am human. I will let all my clients know 7 days before I go on any vacation that is longer than 2 days.

- (B) During vacation time maintenance, design, and tech support can be unavailable until I get back. Evergreen By Design cannot be held liable for any revenue or monetary loss your website may have had during this time.

Email Marketing

- (A) Evergreen By Design is proud to offer a complete Email Marketing System to my clients. Emails are sent out to your subscribers or customers in 1 to 3 business days so please plan accordingly. Evergreen By Design cannot be held liable for emails not reaching certain inboxes, though I do incur a 99.6% hit for email inboxes (not spam).
- (B) Evergreen By Design can create content for your emails as well as part of the content creation services according to your plan. Content created for email sending must be approved by you (The Client) before the email is sent out. You may also of course create your own emails for your subscribers as well.
- (C) Evergreen By Design does not replace or “rollover” unused emails not sent that week.
- (D) There are no discounts for not using your email marketing system.

Hosting Policy

- (A) Hosting is included in all plans.
- (B) You will not have access to hosting as this is part of the managed service provided by Evergreen By Design.
- (C) If you choose to cancel your hosting service you also choose to cancel the database and files of your website as they are one and the same. Files, databases, and hosting are all property of Evergreen By Design’s services and design.
- (D) If you incurred a non-payment and 30 days have passed from said non-payment then your hosting service will be shut down and the database and files will be permanently deleted along with your account. See Payment Policy-(c)

Content Management

- (A) Content can be updated in accordance with the plan that you purchased. Content updating can take up to 1 to 3 business days so please plan accordingly.

Content Creation

- (A) Evergreen By Design provides content creation to you (The Client). Initial website design comes with complete content creation to get your website up and running. You may modify any content created on your website with the initial website design and really make it your own.
- (B) After website design content creation will be set in each of the plan limits. Using your content creation allotment also uses the allotment in posts or content updating limit as well.
- (C) Evergreen By Design will not auto-create content for you (The Client). Any content creation beyond the initial website design needs to be submitted through email with an idea/details of the content that you want to be created.

Website Access

- (A) Website access is only allowed in a limited capacity with a Specialty Self-Management System Gold or Elite Plan. These systems give you access to a section of your website where the specialty system is controlled. Evergreen By Design cannot be held liable in any way for user error, lack of knowledge of how to use the system, or website breaking due to misuse of the system.
- (B) Training for Specialty Self-Management System is done via one-on-one video and is only available in the Elite Plan. Most systems that I use do have many training videos on YouTube, Udemy, or Coursera. Evergreen By Design cannot be held liable for the length of training, lack of understanding of the system, or misuse or misunderstanding from training.
- (C) You may schedule a training session 3 times a month for 1 hour per session. After the 90 days of signing up and if you feel comfortable with the system you may downgrade to a Gold plan. Evergreen By Design cannot be held liable in any way for missed training sessions.

Changing Plans.

- (A) You may always upgrade your plan as needed.
- (B) You are eligible to downgrade your plan after 90 days from signing up for service with Evergreen By design.

AdSense

- (A) Evergreen By Design cannot be held liable for any AdSense monetization. That includes presumed or actual revenue loss from AdSense.
- (B) AdSense is a third-party website monetization tool for websites that can generate revenue on your (the client's) website. Evergreen By Design does not control your AdSense platform nor can Evergreen By Design be held liable for any revenue loss from AdSense. Evergreen By Design is only responsible for placing the ads on your website.
- (C) AdSense Ad Rating is controlled by you as well. Evergreen By Design cannot be held responsible for inappropriate or offensive ads being run on your website. This is due to the fact that you (the client) are the one in control of your AdSense platform. See Google AdSense for more details.

Social Media Integration

- (A) Evergreen By Design is not responsible for maintaining your social media profiles and only provides a way for people to find your social media profiles on your website.
- (B) Evergreen By Design will NOT add content to your social media profiles and is not part of the website content management plan.
- (C) Evergreen By Design does not perform or provide any social media marketing.

Google Analytics Integration

- (A) Evergreen By Design is not responsible for setting up any Google Analytics account as this is your personal account to monitor traffic to your website.
- (B) Evergreen By Design is in no way affiliated with Google Analytics and this is considered a third-party software.
- (C) Management of Google Analytics is on you (the client). Evergreen By Design can't be held liable for any account loss.

Ecommerce Sites

- (A) Evergreen By Design cannot be held liable for any loss of revenue from your shop.
- (B) Evergreen By Design cannot be held liable for customer refunds, purchases, or any other monetary transactions on the website.
- (C) E-commerce websites must comply with all GDPR-compliant regulations and have a Privacy Policy for said website. I do direct you to links where you can create these documents easily for your website in the welcome packet.
- (D) Evergreen By Design is not responsible for any transactional email that fails to reach the inbox of a customer.
- (E) E-commerce websites require a payment gateway for successful transactions (i.e PayPal, Stripe, Square, etc.). Evergreen By Design is not responsible for these third-party payment accounts. These are your personal accounts used to process payments and transactions and transfer money into your (the client's) bank account. Evergreen By Design is not responsible for any fees, misuse, tax information, account creation, maintaining a payment gateway account, or anything associated with any payment gateway account. These accounts are managed solely by you (the client).

Professional Email

- (A) Premium plans and above can request a professional email for free. This is an email you@yourdomain.com. You will have access to this email for as long as you are with Evergreen By Design.
- (B) If you cancel your plan you're emails and your professional email service will get terminated with the cancelation. These emails are not retrievable so download all emails before canceling.

Search Engine Rankings

- (A) While Evergreen By Design does perform SEO techniques to optimize your website page or posting for search engines Evergreen By Design does not guarantee any search engine ranking position nor does Evergreen By Design have control over search engine rankings. Search engine rankings are based on numerous factors out of Evergreen By Designs' control.
- (B) Evergreen By Design cannot be held liable for any presumed or actual monetary loss due to search engine rankings.

Marketing

- (A) Evergreen By Design is not responsible for any marketing of your (the client's) business or website.
- (B) Evergreen By Design does NOT perform any online marketing for your website. Online marketing is yours (the client's) responsibility!
- (C) Evergreen By Design cannot be held liable for any presumed or actual monetary loss due to marketing.

Logo Design

- (A) Evergreen By Design includes logo design for your website and business. Logo design includes a rounded logo and a banner logo. You will receive 3 logo variations to choose from. Evergreen By Design cannot be held liable for logo design dislike.
- (B) Logo designs are 100% yours (The Clients). This includes all copyrights to the design and usage in any other fashion that you (The client) want to use them in.
- (C) Logo design will come in. Svg, .JPEG, and. Png formats. Once logo design is finished and approved by you (The Client) Evergreen By Design cannot be held liable for loss, trademark and/or copyrights, or any other type of infringement on your business or logo designs from other entities.